



CHAPTER xxxiv

An Act to confirm a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act, 1861, relating to Exmouth. [27th July, 1961]

WHEREAS a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act, 1861, is not of any validity or force whatever until confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the said Act as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. The Order as set out in the schedule to this Act shall be Confirmation and the same is hereby confirmed and all the provisions thereof of Order in in manner and form as they are set out in the said schedule shall schedule. from and after the passing of this Act have full validity and force.

2. This Act may be cited as the Pier and Harbour Order Short title. (Exmouth) Confirmation Act, 1961.

SCHEDULE

EXMOUTH DOCKS

Provisional Order to authorise the Exmouth Docks Company to increase the maximum rates authorised by the Exmouth Docks Act, 1864, and for other purposes.

Short title and citation.

1.—(1) This Order may be cited as the Exmouth Docks Order, 1961.

(2) The Exmouth Docks Act, 1864, the Exmouth Docks Act, 1870, and this Order may be cited together as the Exmouth Docks Acts and Order, 1864 to 1961.

Commencement.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as the commencement of this Order.

Interpretation.

3.—(1) In this Order unless the context otherwise requires—

“the Act of 1864” and “the Act of 1870” mean the Exmouth Docks Acts of those respective years;

“authorised rates” means the rates, tolls and charges which the Company are for the time being authorised to levy, demand, receive and recover under or by virtue of the Exmouth Docks Acts and Order, 1864 to 1961;

“Company” means the Exmouth Docks Company;

“docks” means the limits within which the powers of the dock-master for the purposes of the Harbours Clauses Act, 1847, and the existing Acts may be exercised as set out in section 3 (Limits of dock-master’s jurisdiction extended) of the Act of 1870;

“enactment” means any Act whether public general or local or any order made thereunder or any provision in any Act or any such order;

“the existing Acts” means the Act of 1864 and the Act of 1870;

“Harbours Clauses Act, 1847”, means the Harbours Docks and Piers Clauses Act, 1847;

“Minister” means the Minister of Transport;

“seaplane” includes a flying boat and any other aircraft designed to manœuvre on water;

“statutory securities” includes any securities in which trustees are for the time being authorised to invest trust moneys;

“vessel” includes any vessel, ship, lighter, keel, barge, boat, raft, pontoon and craft of any kind, howsoever navigated, propelled or moved, and (except for the purpose of levying rates) any seaplane on the surface of the water.

(2) For the purpose of the existing Acts and the enactments incorporated therewith the word "vessel" shall have the meaning assigned to it by subsection (1) of this section.

(3) Any reference in this Order to any enactment shall be construed as a reference to that enactment as amended by any subsequent enactment including this Order.

4.—(1) Sections 6 to 13, 16 to 23, 25 to 27, 31, 34 to 46, 48 to 98 and 101 to 104 of the Harbours Clauses Act, 1847, shall not be incorporated in this Order.

Application
of Harbours
Clauses Act,
1847.

(2) In the application to this Order of the Harbours Clauses Act, 1847, the expression "the special Act" shall mean this Order and the word "vessel" shall have the meaning assigned to that word by subsection (1) of section 3 (Interpretation) of this Order :

Provided that nothing in the Harbours Clauses Act, 1847, shall in any circumstances require or authorise the dock-master or other officer to require the dismantling of a seaplane or any part thereof or the making of any alteration whatever of the structure or equipment of a seaplane.

5. The Company shall be the undertakers for carrying this Order into execution.

Undertakers.

6. Section 28 of the Harbours Clauses Act, 1847, as incorporated with the Act of 1864 and with this Order, shall be read and have effect as amended by subsection (2) of section 31 of the Post Office Act, 1953.

As to section
28 of Harbours
Clauses Act,
1847.

7. As from the commencement of this Order the Company may increase by an amount not exceeding twenty-five per centum all or any of the rates which they are authorised to demand, receive and take by the following provisions of the Act of 1864 (as amended by the Exmouth Docks (Increase of Charges) Order, 1947) :—

Increase of
rates.

Section 31 (Rates payable on Ships as in Part I of Schedule (A)) ;

Section 32 (Rates on Passengers as in Part II of Schedule (A)) ;

Section 33 (Rates on Goods as in Part III of Schedule (A)) ;

Section 34 (Rates for the Use of Wharfs, Cranes, &c., as in Part IV of Schedule (A)).

8.—(1) The Company may (so far as the rates specified in Part IV of Schedule (A) to the Act of 1864 do not extend) demand and take such reasonable rates as they may from time to time determine for the use of any yards, works, plant, appliances and conveniences belonging to or provided by the Company or in respect of any services rendered by the Company in connection with the docks.

Rates for
services and
accommodation
not otherwise
provided for.

(2) The rates authorised by subsection (1) of this section shall be payable by the owner of the goods or other articles dealt with or by the master of any vessel using or applying for the use of such yards, works, plant, appliances, conveniences or services or by any other person who may so apply.

Increase of
railway tolls
and rates.

9. As from the commencement of this Order the Company may increase by an amount not exceeding twenty-five per centum all or any of the tolls and rates which they are authorised to demand and take by the following provisions of the Act of 1864:—

Section 50 (Tolls for Use of Railway and Carriages);

Section 51 (Tolls for Locomotive Power);

Section 52 (Maximum Rates of Charges);

Section 53 (Tolls for small Parcels);

Section 54 (Tolls for single Articles of great Weight).

Recovery of
authorised
rates.

10. In addition to the remedy given by section 44 of the Harbours Clauses Act, 1847, and whether the demand required by that section has been made or not, the Company may recover the amount of any authorised rates due to them as a debt in any court of competent jurisdiction.

Power to
dispose of
land.

11.—(1) The Company may dispose of any land for the time being vested in them which they do not require in such manner (whether by way of sale, exchange, lease, the creation of any easement, right, or privilege or otherwise), for such period and upon such conditions and for such consideration as they may think fit:

Provided that the Company shall not sell any land to which the provisions of sections 127 to 131 of the Lands Clauses Consolidation Act, 1845, apply otherwise than in accordance with those provisions so far as applicable.

(2) Nothing in this section shall be construed as conferring on the Company power—

(a) in the case of any land vested in them subject to any right or interest therein of any other person, or to the performance of any obligation in force at the date of alienation and to be performed by the Company under any enactment, deed, agreement or other instrument, to alienate such land otherwise than subject to such right interest or obligation; or

(b) in the case of land vested in them subject to any restriction on alienation, to alienate the land in contravention of that restriction.

Powers with
respect to
disposal of
wrecks.

12.—(1) In their application to the Company, sections 530 and 532 of the Merchant Shipping Act, 1894 (which confer powers on the Company with respect to, and with respect to anything in or on, any vessel sunk, stranded or abandoned in such manner as to be an obstruction or danger to navigation in the docks or in or near any approach thereto) shall have effect—

(a) subject to the provisions of section 13 (Protection of Crown interests in wrecks) of this Order;

(b) in relation to a vessel sunk, stranded or abandoned before, as well as after, the commencement of this Order.

(2) Subject to subsection (3) of this section, and to any enactment for the time being in force limiting his liability, the Company may recover as a simple contract debt from the owner of any vessel in

relation to which they have exercised their powers under the said section 530, being a vessel sunk, stranded or abandoned after the commencement of this Order, any expenses reasonably incurred by them under that section in relation to that vessel which are not reimbursed out of any proceeds of sale within the meaning of that section.

(3) Except in a case which is in the opinion of the Company a case of emergency, subsection (2) of this section shall not apply in relation to any vessel unless, before exercising in relation to that vessel any of the powers conferred on them by the said section 530 other than the power of lighting and buoying, the Company have given to the owner of the vessel not less than forty-eight hours' notice of their intention to do so; and if before the notice expires the Company receive from the owner counter-notice in writing that he desires to dispose of the vessel himself, and no direction is served in respect of the vessel under paragraph (b) of subsection (2) of the said section 13 he shall be at liberty to do so, and the Company shall not exercise the powers aforesaid in relation to that vessel until the expiration of seven days from the receipt of the counter-notice and of any further continuous period thereafter during which the owner of the vessel proceeds with the disposal thereof with all reasonable diligence and in compliance with any directions for the prevention of interference with navigation which may be given to him by the Company.

(4) Notice under subsection (3) of this section to the owner of any vessel may be served by the Company either by delivering it to him or by sending it to him by post in a registered letter addressed to him at his last known place of business or abode in the United Kingdom or, if the owner or any such place of business or abode is not known to the Company by displaying the notice at the offices of the Company for the period of its duration.

(5) In this section the expression "owner" in relation to any vessel means the person who was the owner of the vessel at the time of the sinking, stranding or abandoning thereof.

13.—(1) Without prejudice to section 741 of the Merchant Shipping Act, 1894 (which relates to the exemption from the provisions of that Act of vessels belonging to Her Majesty), as modified by any Order in Council made under section 80 of the Merchant Shipping Act, 1906, the powers conferred on the Company by sections 530 and 532 of the said Act of 1894 shall not be exercisable—

Protection
of Crown
interests in
wrecks.

(a) in relation to any vessel sunk, stranded or abandoned by design by or under the orders of a person acting on behalf of Her Majesty or an officer or servant of the Crown acting in the course of his duty as such;

(b) except with the consent of the Admiralty, which may be given with or without such a direction as is referred to in paragraph (b) of subsection (2) of this section, in relation to any vessel which is not excluded from the exercise of those powers by virtue of being a vessel belonging to Her Majesty but which, at the time when the vessel was sunk, stranded or abandoned—

(i) had been required to be placed at the disposal of Her Majesty or of a government department; and

(ii) was appropriated to the service, under the direction and control of the Admiralty, of Her Majesty's ships of war.

(2) The Company shall give notice in writing to the Admiralty and to the Minister of any decision of the Company to exercise in relation to any vessel any of the powers aforesaid other than the power of lighting and buoying and, except in a case which is in the opinion of the Company a case of emergency, shall not proceed with the exercise thereof—

(a) except with the consent of the Admiralty and the Minister, before the expiration of a period of fourteen days from the giving of the notice ; or

(b) if before the expiration of the said period there is served on the Company a direction by the Admiralty or the Minister that those powers shall not be exercised in relation to that vessel except in such a case as aforesaid,

and where in any such case as aforesaid, the Company proceed to exercise those powers without the consent and before the expiration of the period mentioned in paragraph (a) of this subsection or after a direction has been served on them as aforesaid, they shall not in the exercise of those powers use any explosives and, if before the expiration of the period aforesaid such a direction as aforesaid is served on them, shall not be entitled to exercise the power of sale conferred by the said section 530 or the power conferred by subsection (2) of section 12 (Powers with respect to disposal of wrecks) of this Order :

Provided that—

(i) the Company shall not be required to give notice under this subsection in respect of any vessel in respect of which they have received a consent under paragraph (b) of subsection (1) of this section, but any direction such as is referred to in paragraph (b) of this subsection accompanying that consent shall be deemed for the purposes of this subsection and of subsection (3) of section 12 (Powers with respect to disposal of wrecks) of this Order to have been duly served under paragraph (b) of this subsection ;

(ii) the prohibition on the use of explosives imposed by this subsection shall not apply to the use for cutting away the superstructure of a vessel of such small explosive charges as may for the time being be approved by the Minister for the purposes of this proviso.

(3) Without prejudice to the power of sale conferred on the Company by the said section 530, the Company shall hold and dispose of any wreck within the meaning of Part IX of the said Act of 1894 raised, removed or recovered under that section, and any surplus proceeds of sale within the meaning of that section, in accordance with such directions, if any, as may be given to them by the receiver of wreck ; and on exercising the said power of sale in the case of any property the Company shall discharge any sums payable in respect of that property by way of duties of customs or excise, purchase tax, or surcharge in respect of sugar or molasses, and any

sums so discharged shall be deemed to be expenses incurred by the Company under that section.

(4) Any limitation on the powers of the Company in relation to any vessel arising by virtue of subsection (1) or subsection (2) of this section shall not operate to authorise the exercise in relation to that vessel of the powers conferred on the Trinity House by section 531 of the said Act of 1894.

14. Section 52 of the Harbours Clauses Act, 1847, in its application to the Company and the dock-master shall extend to empower the dock-master to give directions prohibiting the mooring of vessels in any particular part or parts of the docks. Dock-master may give directions as to mooring.

15. Section 53 of the Harbours Clauses Act, 1847, in its application to the Company and the dock-master shall not be construed to require the dock-master to serve a notice in writing of his directions upon the master of a vessel and such directions may be given verbally or otherwise communicated to the master on any occasion when it is not reasonably practicable for a written notice to be served on the master. Directions of dock-master need not be in writing.

16.—(1) The byelaws which may from time to time be made by the Company in exercise of the powers in that behalf conferred on them by section 83 of the Harbours Clauses Act, 1847, as incorporated with the existing Acts and by section 41 (Byelaws as to Disposal of Ballast) of the Act of 1864, may provide for the imposing of a penalty not exceeding ten pounds for the breach or non-observance of any of the byelaws. Byelaws.

(2) Notwithstanding the provisions of the Harbours Clauses Act, 1847, relating to the procedure for the making and confirmation of byelaws by the Company the provisions of subsections (3) to (7) of section 250 and section 252 of the Local Government Act, 1933, shall apply to all byelaws to be made by the Company and in the application of such last-mentioned provisions the Minister shall be the confirming authority.

17. The Company may if they think fit, for the purpose of forming and maintaining a reserve fund, which fund shall be applicable to answer any deficiency at any time happening in the income of the Company or to meet any extraordinary claim or demand in respect of the undertaking or for payment of the cost of renewing, improving or extending any part of the works forming part thereof, appropriate and set apart any amount which they think fit in any year out of the revenue received under the existing Acts, and shall deposit any such amount in some joint stock bank to be increased by accumulation in the way of compound interest or otherwise, or invest the same in statutory securities, until required for any of the purposes aforesaid. Reserve fund.

18.—(1) The Company shall annually appoint one or more persons or a firm of accountants to be the auditor or auditors of the Company : Auditors.

Provided that no person or firm shall be qualified for appointment as auditor unless he is a member or in the case of a firm

unless all the partners are members of one or more of the following bodies :—

- the Institute of Chartered Accountants in England and Wales ;
- the Institute of Chartered Accountants of Scotland ;
- the Association of Certified and Corporate Accountants ;
- the Institute of Chartered Accountants in Ireland ;

any other body of accountants established in the United Kingdom and for the time being recognised for the purposes of paragraph (a) of subsection (1) of section 161 of the Companies Act, 1948, by the Board of Trade.

(2) It shall not be necessary for any auditor of the Company to hold any shares or stock of the Company.

(3) No person not being a retiring auditor of the Company shall be eligible to be elected at any general meeting an auditor of the Company unless notice in writing be given to the secretary or left at the principal office of the Company not less than seven clear days before the date of the meeting that such a person will be proposed for election as auditor of the Company. The secretary shall on receipt of any such notice send a copy thereof to the retiring auditor or auditors and during the seven days and day of election keep a copy of the notice fixed in some conspicuous place in the said office.

(4) If any auditor of the Company die or resign the directors may appoint another auditor in his place and any auditor so appointed shall hold office until the next ordinary meeting.

Notice of
meetings.

19. Notwithstanding anything in the Companies Clauses Consolidation Act, 1845, as incorporated with the existing Acts notice of all meetings of the Company whether ordinary or extraordinary may (if the directors so determine) be given by a prepaid letter sent by ordinary letter post to each shareholder instead of by public advertisement :

Provided that—

(a) any such letter shall be directed according to the registered address or other known address of each shareholder and posted not later than seven clear days before the date of the meeting ; and

(b) in proving that any such notice has been given it shall be sufficient to prove that the letter containing the notice was properly addressed and posted as a prepaid letter not later than the time prescribed by this section.

Annual
accounts to
be sent to
Minister.

20.—(1) The Company shall within three months after the date to which their annual accounts and balance sheet are made up send a copy thereof to the Minister, and section 16 of the General Pier and Harbour Act, 1861, Amendment Act shall apply to and include the Company and any and every such accounts.

(2) The Company shall as from the expiration of that period be liable to a fine not exceeding twenty pounds for every refusal or neglect to comply with the foregoing provisions.

Costs of Order.

21. All costs charges and expenses of and incident to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the Company.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Companies Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 16.
Lands Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 18.
Harbours Docks and Piers Clauses Act, 1847...	10 & 11 Vict. c. 27.
General Pier and Harbour Act, 1861 ...	24 & 25 Vict. c. 45.
General Pier and Harbour Act, 1861, Amend- ment Act	25 & 26 Vict. c. 19.
Exmouth Docks Act, 1864	27 & 28 Vict. c. cccxix.
Exmouth Docks Act, 1870	33 & 34 Vict. c. cxlii.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Merchant Shipping Act, 1906	6 Edw. 7. c. 48.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
Post Office Act, 1953	1 & 2 Eliz. 2. c. 36.

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Exmouth Docks

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